

An Act

ENROLLED SENATE
BILL NO. 1794

By: Stanley and Kirt of the
Senate

and

Roe and Hefner of the House

An Act relating to mental health; creating the Oklahoma Behavioral Health Vacancy Registry Act; providing short title; defining terms; requiring establishment of certain behavioral health vacancy registry; describing registry; requiring registry to include certain dedicated forensic competency module; mandating certain participation and reporting; requiring certain updates and accurate reporting; allowing registry access and placement requests by authorized referral sources; imposing certain requirements and restrictions on covered facilities; stating certain grounds for corrective action; making registry participation voluntary for hospitals; authorizing, requiring, and prohibiting certain acts by hospitals; providing certain construction; authorizing certain audits and administrative remedies; directing confidentiality of registry data and compliance with privacy laws; authorizing certain public reporting; requiring issuance of certain request for proposals; imposing certain requirements and restrictions related to request for proposals; directing promulgation of rules; providing for codification; and providing an effective date.

SUBJECT: Behavioral health vacancy registry

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-111.1 of Title 43A, unless there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Oklahoma Behavioral Health Vacancy Registry Act".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-111.2 of Title 43A, unless there is created a duplication in numbering, reads as follows:

As used in this act:

1. "Available bed" or "available treatment capacity" means a staffed and operational treatment slot, within the covered facility's staffed capacity, that may be assigned to a consumer consistent with the covered facility's licensed level of care and written admission and exclusionary criteria;

2. "Covered facility" means a facility, other than a hospital or hospital-based psychiatric unit, that is licensed or certified in this state and authorized to accept consumers for:

- a. emergency detention, protective custody, or assessment as provided by Sections 1-110 and 5-207 of Title 43A of the Oklahoma Statutes, or
- b. court-ordered competency evaluations and competency restoration services as described in subsection C of Section 3 of this act;

3. "Licensed capacity" means the maximum number of beds or treatment slots a covered facility is licensed or certified to operate;

4. "Referral source" means a facility, provider, court, law enforcement agency, crisis services provider, or other entity authorized by the Department of Mental Health and Substance Abuse Services to request placement through the registry created under this act; and

5. "Staffed capacity" means the number of beds or treatment slots that are operational and supported by sufficient staffing to safely admit and treat consumers.

SECTION 3. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-111.3 of Title 43A, unless there is created a duplication in numbering, reads as follows:

A. Subject to the availability of funding, the Department of Mental Health and Substance Abuse Services shall establish and maintain a secure, electronic, statewide behavioral health vacancy registry to expedite placements associated with:

1. Emergency detention, protective custody, or assessment as provided by Sections 1-110 and 5-207 of Title 43A of the Oklahoma Statutes; or

2. Court-ordered competency evaluations or competency restoration services as described in subsection C of this section.

B. The registry shall provide near real-time information regarding available beds and available treatment capacity at covered facilities in this state.

C. The registry shall include a dedicated forensic competency module to support court-ordered competency evaluations and competency restoration services conducted pursuant to Sections 1175.1 through 1175.6a of Title 22 of the Oklahoma Statutes, including referrals arising from findings of incompetency to stand trial and orders for treatment to restore competency, in compliance with all applicable state laws and any applicable state or federal consent decree.

SECTION 4. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-111.4 of Title 43A, unless there is created a duplication in numbering, reads as follows:

A. Each covered facility shall participate in the behavioral health vacancy registry and report, in the manner prescribed by rules promulgated by the Board of Mental Health and Substance Abuse Services:

1. Licensed capacity and staffed capacity;

2. Current available beds or available treatment capacity;

3. Population served, age range, and level of care;

4. Whether the facility accepts placements associated with emergency detention, protective custody, or assessment as provided by Sections 1-110 and 5-207 of Title 43A of the Oklahoma Statutes or court-ordered competency evaluations and competency restoration services as described in subsection C of Section 3 of this act;

5. Admission limitations based on clinical capability or safety requirements; and

6. Contact information for placement coordination available on a twenty-four-hour basis.

B. 1. Covered facilities shall update registry information upon a material change in availability and at intervals established by the Board through rule.

2. A covered facility shall ensure reported availability accurately reflects available beds or available treatment capacity that is staffed and capable of accepting a placement at the time reported.

C. 1. An authorized referral source may access the registry for placement purposes. The registry shall allow an authorized referral source to submit a placement request or reservation for an available bed at a covered facility.

2. A covered facility shall respond to a registry placement request within the time period established by the Board through rule and shall document acceptance or denial in accordance with rules promulgated by the Board. A registry reservation confirmed by a covered facility shall be honored for the time period established by the Board through rule unless:

a. material clinical information changes,

- b. the consumer no longer meets the facility's written admission criteria, or
- c. the consumer meets the facility's written exclusionary criteria.

D. A covered facility:

1. Shall apply its written admission criteria and written exclusionary criteria in a consistent and nondiscriminatory manner; and

2. Shall not, except for documented clinical or safety reasons, refuse admission of an otherwise appropriate consumer when the registry shows available treatment capacity and the consumer meets the facility's written admission criteria and does not meet the facility's written exclusionary criteria for placement under Sections 1-110 and 5-207 of Title 43A of the Oklahoma Statutes or Sections 1175.1 through 1175.6a of Title 22 of the Oklahoma Statutes.

E. A pattern or practice of refusals by a covered facility inconsistent with reported available treatment capacity or written admission or exclusionary criteria, including selective acceptance designed to avoid higher-acuity or forensic consumers, may constitute noncompliance subject to review and corrective action by the Department of Mental Health and Substance Abuse Services under Section 6 of this act.

SECTION 5. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-111.5 of Title 43A, unless there is created a duplication in numbering, reads as follows:

A. Participation in the behavioral health vacancy registry by hospitals and hospital-based psychiatric units shall be voluntary and on an opt-in basis, except as otherwise required by contract or federal law. A participating hospital or hospital-based psychiatric unit may elect to do one or both of the following:

1. Report staffed capacity and available bed information to the registry; or

2. Accept placement requests through the registry under standards established by rule or contract.

B. A hospital or hospital-based psychiatric unit that elects to participate in the registry shall make good-faith efforts to keep registry information reasonably current; however, delays attributable to direct patient care responsibilities or completion of intake or admission processes shall not constitute a violation of this subsection.

C. A hospital or hospital-based psychiatric unit participating in the registry shall not, solely by virtue of such participation, be deemed a covered facility for the purposes of this act.

D. With respect to a hospital or hospital-based psychiatric unit, receipt of a placement request through the registry does not constitute acceptance of a patient, does not create a duty to accept transfer of a patient, and does not create a transfer agreement. Any evaluation, stabilization, admission, or transfer decision shall remain subject to the Emergency Medical Treatment and Labor Act (EMTALA) and applicable state law.

E. Nothing in this act shall be construed to expand, limit, replace, or conflict with a hospital's obligations under EMTALA. Hospitals participating in the registry shall remain subject to EMTALA regardless of registry participation.

SECTION 6. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-111.6 of Title 43A, unless there is created a duplication in numbering, reads as follows:

A. The Department of Mental Health and Substance Abuse Services may audit behavioral health vacancy registry submissions and responses by covered facilities for accuracy, timeliness, and consistency with written admission criteria and written exclusionary criteria.

B. If the Department determines that a covered facility has failed to report accurately, respond timely, or comply with this act or rules promulgated under this act, the Department may require a corrective action plan and may impose administrative remedies as provided by law.

SECTION 7. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-111.7 of Title 43A, unless there is created a duplication in numbering, reads as follows:

A. The behavioral health vacancy registry shall not include personally identifiable consumer health information.

B. All registry data collection and use shall comply with applicable state and federal privacy laws, including the Health Insurance Portability and Accountability Act of 1996 (HIPAA) and 42 C.F.R., Part 2 as applicable.

C. Registry data, including facility-submitted denial reasons and response information:

1. Shall be confidential and shall be used only for placement coordination, system oversight, and aggregate reporting as authorized by subsection E of this section; and

2. Shall not be subject to the Oklahoma Open Records Act, except for aggregate, de-identified reports as described in subsection E of this section.

D. Nothing in this act shall be construed to require the registry to collect, store, or display individual consumer diagnosis, payor information, or preauthorization status, and the registry shall not be used as a clinical record. Any consumer-specific clinical information exchanged for purposes of placement shall be transmitted outside the registry in a manner consistent with applicable privacy laws.

E. The Department of Mental Health and Substance Abuse Services may publish aggregate, de-identified reports regarding system capacity, utilization, and placement timeliness.

SECTION 8. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-111.8 of Title 43A, unless there is created a duplication in numbering, reads as follows:

Within six (6) months of the effective date of this act, the Department of Mental Health and Substance Abuse Services shall,

subject to the availability of funding, issue a request for proposals for the development and implementation of the behavioral health vacancy registry for the purpose of procuring any technology, platform, software, or vendor services necessary to implement, host, operate, or maintain the registry. Such request for proposals and the procurement process shall be conducted in accordance with the Oklahoma Central Purchasing Act, Section 34.12 of Title 62 of the Oklahoma Statutes, and any other applicable state procurement laws. The Department shall:

1. Prioritize vendors on a best-value basis including, but not limited to, total cost of ownership, implementation timeline, scalability, data security, interoperability, ongoing support, and long-term sustainability;

2. Give preference to proposals that provide the required technology and services at the lowest overall cost, including proposals offered at no cost to the state or participating providers, provided that such proposals meet all functional, security, and compliance requirements of this act. The Department shall not require, as a condition of award, functionality beyond the requirements of this act;

3. Allow proposals funded in whole or in part through gifts, grants, donations, or in-kind contributions of hardware, software, licensing, hosting, or services. The Department may accept such gifts, grants, or donations, subject to applicable law, provided that acceptance does not compromise data ownership, security, independence, or operational control of the registry; and

4. Not expend state-appropriated funds for software development, acquisition, licensing, or subscription to implement the registry unless, after completion of the competitive procurement process required by this section, the Department determines that no proposal meeting the requirements of this act is available at no cost to the state.

SECTION 9. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-111.9 of Title 43A, unless there is created a duplication in numbering, reads as follows:

The Board shall promulgate rules necessary to implement the provisions of this act including, but not limited to, reporting standards, update intervals, placement priority standards, queue management practices, access controls, documentation of denials, reservation time frames, forensic module standards, compliance procedures, and technical and operational standards for hospitals and hospital-based psychiatric units that elect to participate.

SECTION 10. This act shall become effective November 1, 2026.

Passed the Senate the 11th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____